

SUBJECT: USE OF OTHER THAN FULL AND OPEN COMPETITION FOR AN ACQUISITION UNDER THE SIMPLIFIED ACQUISITION THRESHOLD

I. BACKGROUND:

1. FAR 13.106-1(b)(1)(i) states for purchases not exceeding the simplified acquisition threshold, Contracting Officers may solicit from one source if the Contracting Officer determines that the circumstances of the contract action deem only one source reasonably available (e.g., urgency, exclusive licensing agreements, brand-name or industrial mobilization).

2. As required by FAR 13.106-3(b)(3)(i), this memorandum explains the absence of competition for this acquisition, as only one source will be solicited for this requirement (or for a portion of the requirement) and the requirement is not expected to exceed the simplified acquisition threshold.

II. DESCRIPTION OF ITEM OR SERVICE:

ACQR # 6102486 - Hughes Fire Equipment, Inc. for authorized dealer repairs to a Pierce Structural Pumper Fire Fighting Truck at Naval Base Kitsap (NBK). PoP 30 days after award.

III. THE DETERMINATION FOR USE OF OTHER THAN FULL AND OPEN COMPETITION IS BASED ON THE FOLLOWING (select all that apply):

A. ☒ ONLY ONE RESPONSIBLE SOURCE (select all that apply):

1. ☐ **RESTRICTIVE RIGHTS.** The source has established proprietary rights, limited rights in data, patent rights, copyrights or secret processes in the item or service required.

2. ☒ **EXCLUSIVE LICENSING AGREEMENTS.** The item or service is only available from the Original Equipment Manufacturer (OEM), or there is only one authorized distributor or technical representative for the OEM.

- Perform immediate diagnostics, repair, testing to restore N7303299, Pierce Contender Structural Pumper Fire Truck to full operating capability as per National Fire Protection Association (NFPA) 1911 and DOT regulations.
- Repair of fire apparatuses must be performed by a certified Emergency Vehicle Technician (EVT) in accordance with NFPA 1911. This is a PIERCE Fire Truck certified vendor that will also provide a warranty on their performed work.

- With the high visibility and current Regional Leadership mandate that FFES is a priority to achieve and maintain a 90% availability percentage, it has become critical to maintain this truck in the regional fleet to provide rotational coverage enabling all other operational Fire Trucks to be taken offline in order to receive Preventative Maintenance (PM).
- Vendor is the only recognized PIERCE Fire Truck Dealer and certified maintenance provider accessible near the Kitsap Peninsula. Availability of vendors with Emergency Vehicle Technicians within a reasonable distance of NBK is extremely limited. There is one other known vendor in Yakima, WA (distance 181 miles) and one in Springfield, OR (distance 293 miles)
- Hughes Fire Equipment is a certified Pierce Fire Truck dealer which has the experienced technicians to perform dealer level maintenance and repair on our Make and Model Fire Truck. HUGHES also has a direct line to Pierce for Parts and support significantly shortening the expected downtime of the truck.

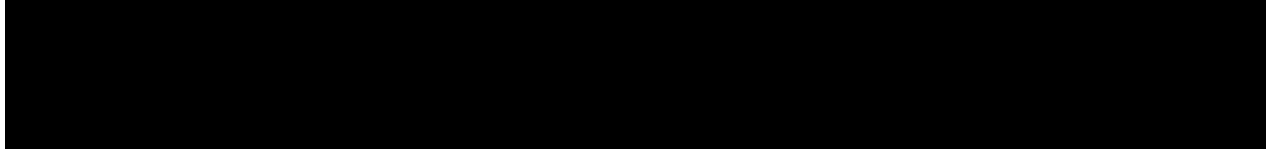
3. ☐ **OTHER REASONS.** *Other reason not identified above. Provide details on mission impact if requirement is not solicited from only one source.*

B. ☐ BRAND NAME. Item required must be a brand name product, or feature of a product, particular to one manufacturer.

C. ☐ UNUSUAL AND COMPELLING URGENCY. The supplies or services are of such unusual and compelling urgency that the Government would be seriously injured unless the agency is permitted to limit the number of sources from which it solicits bids or proposals. Urgent requirements are supplies or services that will result in a work stoppage or are mission critical and the routine processing time would result in injury to the Government. The determination that the procurement for the above item/service is an urgent and compelling requirement is based on the following:

IV. CERTIFICATIONS/APPROVALS:

Technical / Requirements Certification: I certify that the facts and representation under my cognizance which are included in this justification are complete and accurate to the best of my knowledge and belief.



Contracting Officer Approval

I certify that this Justification is accurate and complete to the best of my knowledge and belief.

